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Case Number: 24NNCV03036 Hearing Date: July 8, 2026 Dept: T

Claire

Yi He vs Sheng Li, et al.

Motion

to Compel Plaintiff's Deposition and Production of Documents

Moving Party: Defendant

Cassix LLC

Responding Party: Plaintiff

Claire Yi He

Tentative Ruling: Grant

BACKGROUND

On

April 6, 2026, Defendant

Cassix LLC

("Defendant")

served a notice of deposition and notice to produce documents on Plaintiff

Claire Yi He ("Plaintiff"), which noticed the taking of the in-person

deposition of Plaintiff for April 29, 2026, and set forth 25 production

requests.

On

April 16, 2026, following an exchange of email correspondence between counsel

for the parties, the date of Plaintiff's deposition was rescheduled to May 11,

2026, with all other details set forth in the original notice remaining operative.

On

May 6, 2026, Plaintiff served objections to the production requests. The next day, her counsel withdrew an objection to Defendant's vague usage of term "complaint" in these requests. In the same correspondence, Plaintiff's counsel stated that Plaintiff would be appearing remotely for the hearing.

Following a disagreement between counsel as to whether Plaintiff could appear remotely for this deposition, defense counsel took this deposition off calendar to file the instant motion.

Defendant now moves to compel

Plaintiff's in-person deposition and her responses to its production requests.

Plaintiff opposes, and Defendant replies. The Court exercises its discretion to consider Plaintiff's untimely opposition.

(Cal. Rules of Court, rule 3.1300(d).)

MOVING

PARTY POSITION

Defendant asks for an order

compelling Plaintiff to appear for deposition in-person and to produce the requested documents due to Plaintiff's refusal to appear in-person and provide the requested records. Defendant also seeks \$6,010.00 in monetary sanctions against Plaintiff and her counsel of record.

OPPOSITION

In

an untimely opposition, Plaintiff contends that the motion should be denied because Plaintiff never refused to submit to discovery and because Defendant has not established any basis to compel document production under Code of Civil Procedure section 2025.240. Plaintiff argues that sanctions against her are unwarranted and also seeks \$3,575.00 in monetary sanctions against Defendant and its counsel of record.

REPLY

Defendant

initially responds that Plaintiff's opposition was late and may be disregarded by the Court. Defendant further responds that the opposition avoids facts and law and that it does not establish that Plaintiff's counsel acted with substantial justification in opposing the motion.

ANALYSIS

I.

Legal

Standard

"If,

after service of a deposition notice, a party to the action ... , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ... described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document ... described in the deposition notice." (Code Civ. Proc. § 2025.450, subd. (a).)

"A motion under subdivision (a)

[above] shall comply with both of the following:

1. The motion shall set forth

specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

2. The motion shall be accompanied

by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance."

(Code Civ. Proc. § 2025.450,
subd. (b).)

II.

Discussion

A.

Meet and Confer

The

Court finds that the declaration of Defendant's counsel, Lyle R. Mink, sets forth sufficient facts showing that counsel attempted to resolve this issue in good faith after Plaintiff communicated that she would not attend the deposition as noticed. (Mink Decl. ¶¶ 2-16.)

B.

Compel Deposition and Document
Production

On May 7, 2026, Plaintiff informed Defendant that she would not be appearing in-person for the noticed deposition and served the following amended objection to this notice:

Plaintiff

further objects to the deposition notice that required in person appearance which imposes unnecessary burden, expense, and inconvenience where the deposition can be effectively conducted remotely by videoconference. Defendant [sic] further objects to the extent the notice seeks to compel in-person appearance without good cause demonstrating that a remote deposition would be inadequate or prejudicial.

(Sun Decl. ¶ 14, Exh. C.)

Under

Code of Civil Procedure section 2025.410, "[a]ny party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served." (Code Civ. Proc. § 2025.410, subd. (a), emphasis added.)

However,

none of the objections set forth by Plaintiff constitute actual error or irregularity in the notice itself, including any failure to comply with Article

2. First, Plaintiff's objection that

Defendant must demonstrate good cause for noticing an in-person deposition is without factual or statutory basis.

Rather, Code of Civil Procedure section 2025.250 provides that, "[u]nless the court orders otherwise under Section 2025.260, the deposition of a natural person, whether or not a party to the action, shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent's residence, or within the county where the action is pending and within 150 miles of the deponent's residence." (Code Civ. Proc. § 2025.250, subd. (a), emphasis added.) Accordingly, no good cause showing is required for a deposing party to notice the deposition of a natural person at a physical location within 75 miles of a deponent's residence. Furthermore, as Plaintiff offers no argument or evidence establishing that the noticed Pasadena location for her deposition is not within 75 miles of Plaintiff's residence, Plaintiff's objections as to the unnecessary burden, expense, and inconvenience of an in-person deposition are meritless.

Nor

does Code of Civil Procedure section 2025.310 provide a deponent with the discretion to elect to attend a properly noticed deposition remotely, as the statute concerns the discretion afforded to counsel, non-deponent parties, and deposition officers to attend a deposition remotely. (See Code Civ. Proc. § 2025.310, subd. (a) [allowing the deposition officer to attend a deposition at a different location than the deponent via remote means]; id., subd. (b) [providing any party or attorney of record with the discretion to be physically present at the deposition at the deponent's location]; see, also, id., subd. (d) ["An exercise of the authority granted by subdivision (a) or (b) does not waive any other provision of this title, including, but not limited to, provisions regarding the time, place, or manner in which a deposition shall be conducted."].)

Moreover, in reviewing defense

counsel's declaration, the Court finds that Defendant has shown good cause for the inspection and production of each of the 25 production requests set forth in the deposition notice. (See Mink Decl.

[re Good Cause] ¶¶ 1-25.) Although

Plaintiff objected to these requests due to the purportedly vague usage of the term “complaint” throughout, it appears that this objection was withdrawn upon Defendant’s confirmation that the allegations referenced in the disputed production requests were directed to the second amended complaint, which the Court notes was evident from the plain language of the notice itself. (Mink Decl. ¶ 2, Exh. 1, at p. 2 [“The original and copy of the 2020 Agreement described in paragraph 37 of your second amended complaint (hereafter “complaint”)”], emphasis added.) Nor are the remaining objections to these production requests merited, as Plaintiff cites to no legal authority for her refusal to produce any original documents for inspection at deposition.

Therefore, given Plaintiff’s meritless objections to the noticed location of her deposition and the requested documents for production, the motion to compel is granted in its entirety.

D. Sanctions

“If

a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

(Code Civ. Proc. § 2025.450, subd. (g).)

Defendant

seeks \$6,010.00 in monetary sanctions against Plaintiff and her counsel of record, which defense counsel calculates by applying his \$595.00 hourly rate to 10 total hours of completed and anticipated work, plus a \$60.00 filing fee. (Mink Decl. ¶ 17.) Given the motion’s apparent lack of complexity and the facially excessive hours of work attributed to the motion, the Court finds that a reasonable reduction of \$2,975.00 is warranted, reflecting a reduction of 5 total hours of work.

Therefore,

as Plaintiff failed to show substantial justification in opposing the instant

motion and as the circumstances underlying this motion do not make the imposition of sanctions unjust, the Court awards sanctions in the amount of \$3,035.50.

RULING

Defendant

Cassix LLC's Motion to

Compel Plaintiff Claire Yi He's Deposition and Production of Documents is

GRANTED. Plaintiff shall appear for an in-person

deposition at the office of Chiao & Wu within 20 days of this order, or on

another date and location stipulated in writing by the parties.

The Court

further GRANTS monetary sanctions in reduced amount

of \$3,035.50 against

Plaintiff and her counsel of record, jointly and severally. Said monetary sanctions shall be paid to counsel for Defendant within 30 days of this order.